

STATE OF NEW YORK

8548--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 20, 2025

Introduced by M. of A. STIRPE -- read once and referred to the Committee on Economic Development -- recommitted to the Committee on Economic Development in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the alcoholic beverage control law, in relation to the adoption of a good cause for disapproval standard for off-premises retail licenses

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 63 of the alcoholic beverage
2 control law, as added by chapter 1024 of the laws of 1965, is amended to
3 read as follows:

4 6. Determinations under this section with respect to approving the
5 issuance of a new license or under section one hundred eleven of this
6 chapter with respect to the transfer to any other premises of a license
7 issued hereunder, shall be made [~~in accordance with public convenience~~
8 ~~and advantage~~] unless there is good cause shown for disapproval by the
9 liquor authority.

10 § 2. Subdivision 4 of section 79 of the alcoholic beverage control
11 law, as added by chapter 1024 of the laws of 1965, is amended to read as
12 follows:

13 4. Determinations under this section with respect to approving the
14 issuance of a new license or under section one hundred eleven of this
15 chapter with respect to the transfer to any other premises of a license
16 issued hereunder shall be made [~~in accordance with public convenience~~
17 ~~and advantage~~] unless there is good cause shown for disapproval by the
18 liquor authority.

19 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD04805-03-6